

LEGISLATURE OF NEBRASKA
ONE HUNDRED NINTH LEGISLATURE
SECOND SESSION

LEGISLATIVE BILL 806

Introduced by Ibach, 44.

Read first time January 07, 2026

Committee:

- 1 A BILL FOR AN ACT relating to the Site and Building Development Act; to
- 2 amend section 81-12,147, Reissue Revised Statutes of Nebraska; to
- 3 provide for a grant to a city of the first class; to state intent to
- 4 appropriate funds; and to repeal the original section.
- 5 Be it enacted by the people of the State of Nebraska,

1 **Section 1.** Section 81-12,147, Reissue Revised Statutes of Nebraska,
2 is amended to read:

3 81-12,147 (1) Except as provided in subsection (2) of this section,
4 the Department of Economic Development shall use the Site and Building
5 Development Fund to finance loans, grants, subsidies, credit
6 enhancements, and other financial assistance for industrial site and
7 building development and for expenses of the department as appropriated
8 by the Legislature for administering the fund. The following activities
9 are eligible for assistance from the fund:

10 (a) Grants or zero-interest loans to villages, cities, or counties
11 to acquire land, infuse infrastructure, or otherwise make large sites and
12 buildings ready for industrial development;

13 (b) Matching funds for new construction, rehabilitation, or
14 acquisition of land and buildings to assist villages, cities, and
15 counties;

16 (c) Technical assistance, design and finance services, and
17 consultation for villages, cities, and counties for the preparation and
18 creation of industrial-ready sites and buildings;

19 (d) Loan guarantees for eligible projects;

20 (e) Projects making industrial-ready sites and buildings more
21 accessible to business and industry;

22 (f) Infrastructure projects necessary for the development of
23 industrial-ready sites and buildings;

24 (g) Projects that mitigate the economic impact of a closure or
25 downsizing of a private-sector entity by making necessary improvements to
26 buildings and infrastructure;

27 (h) Public and private sector initiatives that will improve the
28 military value of military installations by making necessary improvements
29 to buildings and infrastructure, including, but not limited to, a grant
30 for the establishment of the United States Strategic Command Nuclear
31 Command, Control, and Communications public-private-partnership facility;

1 (i) A grant to a city of the second class that is served by two
2 first-class railroads, that is within fifteen miles of two state borders,
3 and that partners with public power utilities for purposes of expanding
4 electrical system capacities and enhancing redundancy and resilience;

5 (j) A grant of two million dollars to a city of the first class
6 located in the third congressional district if the property previously
7 housed a university or college that is no longer extant and if the
8 improvement and revitalization of the real property is for purposes of
9 supporting the housing, employment, and program needs of youth exiting
10 the foster care system. In addition, the real property may be used for
11 youth exiting juvenile court supervision in an out-of-home placement;

12 (k) Public and private sector initiatives that will improve the
13 value of cities of the second class that have partnered with the United
14 States Department of Defense or its contractors on upgrades to ground-
15 based nuclear deterrence. Such improvements include the construction of
16 electrical, drinking water, and clean water infrastructure; and

17 (l) Identification, evaluation, and development of large commercial
18 and industrial sites and building infrastructure to attract major
19 investment and employment opportunities for advanced manufacturing,
20 processing, trade, technology, aerospace, automotive, clean energy, life
21 science, and other transformational industries in Nebraska by means of
22 the department providing grants to or partnering with political
23 subdivisions, including inland port authorities under the Municipal
24 Inland Port Authority Act, or nonprofit economic development corporations
25 and entering into contracts for consulting, engineering, and development
26 studies to identify, evaluate, and develop large commercial and
27 industrial sites in Nebraska; and -

28 (m) A grant to a city of the first class in a county with a
29 population of less than fifty thousand inhabitants impacted by a sudden
30 and significant private-sector entity closure or downsizing that will
31 have a significant impact on the community. The grant shall be used to

1 mitigate the economic impact of the closure or downsizing by making
2 necessary improvements to the buildings or infrastructure related to the
3 assets of the private-sector entity.

4 (2) The Department of Economic Development shall use the subaccount
5 of the Site and Building Development Fund described in subsection (2) of
6 section 81-12,146 to provide financial assistance to any inland port
7 authority created under the Municipal Inland Port Authority Act to help
8 finance large shovel-ready commercial and industrial sites developed
9 under such act.

10 (3) It is the intent of the Legislature to appropriate XX dollars
11 from the General Fund for purposes of carrying out subdivision (1)(m) of
12 this section.

13 **Sec. 2.** Original section 81-12,147, Reissue Revised Statutes of
14 Nebraska, is repealed.